

Republic of the Philippines
HOUSE OF REPRESENTATIVES
Quezon City

TWENTIETH CONGRESS
First Regular Session

HOUSE BILL NO. 3425



Introduced by: **REP. SALVADOR A. PLEYTO, SR.**

EXPLANATORY NOTE

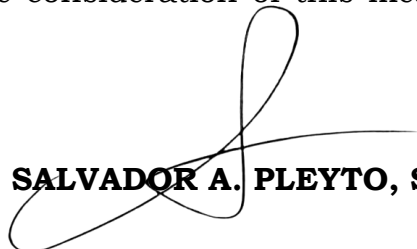
The rapid advancement of artificial intelligence (AI) has given rise to sophisticated technologies, including "deepfakes." Deepfakes are synthetic media in which a person in an existing image or video is replaced with someone else's likeness, which is generated through artificial intelligence (AI) and deep learning algorithms. While AI offers numerous benefits, deepfake technology, when used maliciously, poses significant threats to individuals, society, and democratic processes.

Typically, deepfakes are used to purposefully spread false information or they may have a malicious intent behind their use. They can be designed to harass, intimidate, demean, and undermine people. Deepfakes can also create misinformation and confusion about important issues. The rise of deepfakes poses significant challenges to various parts of society, from politics to business, to personal.

This proposed House Bill aims to proactively counter these threats by establishing a legal framework to prohibit the malicious creation, distribution, and use of deepfake technology. The bill recognizes the urgent need to protect individuals from reputational damage, prevent the spread of misinformation and disinformation, safeguard the integrity of public discourse, and mitigate potential interference in elections and other critical societal functions.

By defining prohibited acts and imposing appropriate penalties, the bill aims to protect individuals and society from the malicious exploitation of AI, while also striving to uphold fundamental rights and foster responsible technological advancement. Its successful implementation will depend on clear definitions, robust enforcement mechanisms, and a balanced approach to technological innovation and individual freedoms.

In view of the above, the immediate consideration of this measure is hereby earnestly sought.


SALVADOR A. PLEYTO, SR.

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**AN ACT PROHIBITING THE MALICIOUS CREATION, DISTRIBUTION, AND
USE OF DEEPPAKE TECHNOLOGY, PROVIDING PENALTIES THEREFOR,
AND FOR OTHER PURPOSES**

*Be it enacted by the Senate and the House of Representatives of the Philippines
in Congress assembled:*

Section 1. *Short Title.* - This Act shall be known as the "Anti-Malicious Deepfake Act of 2025."

Sec. 2. *Declaration of Policy.* - It is hereby declared the policy of the State to protect the integrity of information, uphold individual rights to privacy, dignity, and reputation, and safeguard public trust and democratic processes from the malicious manipulation and deceptive use of deepfake technology. The State recognizes the potential benefits of artificial intelligence and synthetic media for legitimate purposes, but also acknowledges the grave risks posed by their misuse, including the spread of disinformation, fraud, harassment, and damage to personal and public interests.

Sec. 3. - *Definition of Terms.* - For purposes of this Act, the following terms shall mean:

a. Artificial Intelligence (AI) – refers to a machine-based system that can, for a given set of human-defined objectives, make predictions, recommendations, or decisions influencing real or virtual environments.

b. Deepfake – refers to any video, audio, image, or other digital content that has been substantially altered, manipulated, or generated using artificial intelligence or machine learning techniques to depict a person's appearance, voice, or actions, or to create a false event or scenario, in a manner that would falsely appear to a reasonable person to be authentic or truthful. This includes, but is not limited to, synthetic media that:

i. Appears to authentically depict any speech or conduct of a person who did not in fact engage in such speech or conduct.

ii. Alters the appearance or voice of a person to create a realistic but fake visual or auditory content.

c. Malicious Deepfake – refers to a deepfake created, distributed, or used with the intent to deceive, defraud, harass, defame, incite violence, spread disinformation, cause emotional distress, damage reputation, or otherwise cause harm to an individual, group, or the public, without the consent of the depicted individual(s) or with the intent to mislead about a matter of public concern.

d. Consent – refers to the voluntary, informed, and unequivocal agreement of an individual, or their legal guardian in the case of a minor or incapacitated person, to the creation, distribution, or use of a deepfake depicting them.

e. Online Platform – refers to any online service provider, social media company, content hosting service, or any other digital platform that enables users to create, upload, share, or disseminate deepfake content.

f. Takedown Request – refers to a formal request made by an individual or their authorized representative to an online platform or the Department of Information and Communications Technology (DICT) for the removal of a malicious deepfake.

Sec. 4. Prohibited Acts. - It shall be unlawful for any person to knowingly create, distribute, or use a malicious deepfake. This shall include, but not be limited to, deepfakes created, distributed, or used for the following purposes:

a. Non-Consensual Intimate Deepfakes: Creating or distributing a deepfake that depicts an identifiable individual engaging in sexually explicit conduct, nudity, or other intimate acts without their consent, regardless of whether the depicted individual is a minor or an adult.

b. Defamatory Deepfakes: Creating or distributing a deepfake that falsely portrays an identifiable individual in a manner that is libelous, slanderous, or otherwise damaging to their reputation.

c. Fraudulent Deepfakes: Using a deepfake to impersonate an individual for financial gain, identity theft, or to induce another person to take action or refrain from taking action to their detriment.

d. Political Disinformation Deepfakes: Creating or distributing a deepfake concerning a candidate in an election or a public official, with the intent to injure the candidate's or public official's reputation or to deceive voters or the public, within sixty (60) days of an election.

e. Incitement to Violence or Hatred Deepfakes: Creating or distributing a deepfake that incites violence, hatred, discrimination, or terrorism against any individual or group based on their race, ethnicity, religion, gender, sexual orientation, disability, or any other protected characteristic.

f. Harassment, Stalking, or Blackmail Deepfakes: Using a deepfake to harass, stalk, intimidate, or blackmail an individual.

Sec. 5. *Transparency and Disclosure.*

a. Any person who creates or distributes a deepfake that is not a malicious deepfake, but which could reasonably be mistaken for authentic content, shall clearly and conspicuously disclose that the content is artificially generated or manipulated. Such disclosure shall be:

- i. Visually apparent, such as a watermark or text overlay, for visual content.
- ii. Audibly clear, such as an audio disclaimer, for audio content.
- iii. Included in the metadata of the digital file.

b. Online platforms shall implement mechanisms to enable and encourage such disclosures and shall develop policies to address non-compliance with this section.

Sec. 6. *Exemptions.* - The provisions of Section 4 shall not apply to:

a. The creation or use of deepfakes for purposes of parody, satire, artistic expression, or educational content, provided that such deepfakes include clear disclaimers indicating their synthetic nature and do not fall under the definition of a malicious deepfake.

b. Lawfully authorized investigative, protective, or intelligence activities of a law enforcement agency or intelligence agency.

c. Deepfakes created or used in good faith for legitimate news reporting, public interest commentary, or documentary purposes, provided that appropriate disclaimers are included.

Sec. 7. *Takedown and Removal Mechanism.*

a. The Department of Information and Communications Technology (DICT) shall establish and maintain a "Deepfake Takedown Portal" within ninety (90) days from the effectivity of this Act. This portal shall serve as a centralized system for individuals to file verified takedown requests for malicious deepfakes.

b. Upon receiving a verified takedown request, the DICT shall: i. Process the request within twenty-four (24) hours. ii. Notify the relevant online platform(s) of the malicious deepfake and the takedown request.

c. Online platforms shall:

i. Establish clear and accessible procedures for users to report malicious deepfakes.

ii. Upon notification from the DICT or a direct verified report from a user, remove or disable access to the flagged malicious deepfake content within forty-eight (48) hours.

iii. Implement measures to prevent the re-uploading of content that has been identified and removed as a malicious deepfake.

d. Failure of an online platform to comply with the takedown and removal requirements under this section shall subject them to the penalties provided herein.

Sec. 8. Penalties.

a. Any person who violates Section 4(a) (Non-Consensual Intimate Deepfakes) shall suffer the penalty of *reclusion temporal* and a fine of not less than Five Hundred Thousand Pesos (P500,000.00) but not more than Five Million Pesos (P5,000,000.00). If the victim is a minor, the penalty shall be *reclusion perpetua* and a fine of not less than One Million Pesos (P1,000,000.00) but not more than Ten Million Pesos (P10,000,000.00).

b. Any person who violates Section 4(b) (Defamatory Deepfakes), Section 4(c) (Fraudulent Deepfakes), Section 4(d) (Political Disinformation Deepfakes), Section 4(e) (Incitement to Violence or Hatred Deepfakes), or Section 4(f) (Harassment, Stalking, or Blackmail Deepfakes) shall suffer the penalty of *prision mayor* and a fine of not less than One Hundred Thousand Pesos (P100,000.00) but not more than One Million Pesos (P1,000,000.00).

c. Any person who violates Section 5 (Transparency and Disclosure) shall suffer the penalty of *arresto mayor* and a fine of not less than Fifty Thousand Pesos (P50,000.00) but not more than Two Hundred Thousand Pesos (P200,000.00).

d. Online platforms that fail to comply with Section 7(c)(ii) (Takedown and Removal Mechanism) shall be liable to a fine of not less than One Million Pesos (P1,000,000.00) but not more than Five Million Pesos (P5,000,000.00) per incident, without prejudice to other civil or criminal liabilities.

e. The penalties provided in this Act shall be without prejudice to any civil action for damages that may be brought by the aggrieved party under existing laws.

f. All proceedings under this Act, particularly those involving non-consensual intimate deepfakes, shall be kept confidential to protect the victim's identity.

Sec. 9. *Extraterritorial Jurisdiction.* - The provisions of this Act shall apply to any person who commits any of the prohibited acts outside the territorial jurisdiction of the Philippines, provided that the malicious deepfake targets or causes harm to a Filipino citizen or resident, or is intended to affect public discourse or elections within the Philippines. The Department of Justice, in coordination with relevant international bodies, shall take necessary steps to pursue such offenders.

Sec. 10. *Joint Congressional Oversight Committee.* - A Joint Congressional Oversight Committee shall be created to monitor the implementation of this Act, review its effectiveness, and recommend necessary amendments every three (3) years from its effectivity. The Committee shall be composed of three (3) members from the Senate, to be designated by the Senate President, and three (3) members from the House of Representatives, to be designated by the Speaker of the House.

Sec. 11. *Appropriations* - The amount necessary for the initial implementation of this Act, including the establishment and maintenance of the Deepfake Takedown Portal, shall be charged against the current appropriations of the DICT. Thereafter, such sums as may be necessary for its continued implementation shall be included in the annual General Appropriations Act.

Sec. 12. *Implementing Rules and Regulations.* - Within ninety (90) days from the effectivity of this Act, the DICT, in coordination with the Department of Justice (DOJ), the National Privacy Commission (NPC), and other relevant agencies, shall promulgate the necessary rules and regulations for the effective implementation of this Act.

Sec. 13. *Separability Clause.* - If any provision or part of this Act is declared unconstitutional or invalid, the remaining parts or provisions not affected thereby shall remain in full force and effect.

Sec 14. *Repealing Clause.* - All laws, decrees, orders, rules, and regulations or parts thereof inconsistent with the provisions of this Act are hereby repealed or modified accordingly.

Sec. 15. *Effectivity.* - This Act shall take effect fifteen (15) days after its complete publication in the Official Gazette or in at least two (2) newspapers of general circulation.

Approved,